

of Service of Summons was filed on May 29, 2026 indicating that Defendant Nor Cal Oil, Inc. was served on May 18, 2026. The Motion for Preference was filed on June 30, 2026. Defendant filed an Answer on June 18, 2026. CCP § 36(c)(1), which allows a party to file the motion after all essential parties have been served, has been satisfied.

Plaintiff Roger Spitsen turned eighty last month. Plaintiff Roger Spitsen has a substantial interest as he the one alleged to have suffered physical injury during a fall at a business owned by Defendant. Plaintiff has presented evidence that his current health conditions are such that a preference is necessary to prevent prejudicing the party's interest in the litigation.. No evidence has been submitted to the contrary and Defendant did not oppose the motion. Plaintiff therefore meets the requirements of mandatory preference pursuant to CCP § 36(a).

The motion is **GRANTED**. Tuesday November 3, 2026 is the 120th day. The Court intends to set the matter for trial no later than October 20, 2026. The Court will also vacate the presently set Mandatory Settlement Conference and set a Mandatory Settlement Conference approximately 4-6 weeks prior to the newly selected trial date. All trial related deadlines will be based on the new trial date. Plaintiffs provided a proposed Order that that will be modified to reflect the Court's ruling.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Motion to Compel Independent Medical Examination: Defendant City of Redding moves for an order compelling Plaintiff September Wynhoff to sit for an Independent Medical Examination ("IME"). There is no dispute that an IME is warranted. However, the parties disagree on the parameters for the IME. Plaintiff specifically seeks the following limitations:

1. The examination shall be limited to matters reasonably necessary for diagnosis, evaluation, causation, and prognosis.
2. The examiner shall not inquire into liability issues for the purpose of obtaining additional factual testimony regarding disputed employment events.
3. The examination shall be video recorded in its entirety except during portions involving proprietary testing materials.
4. Plaintiff shall receive all reports, notes, scoring summaries, and non-proprietary materials generated by the examination.
5. To the extent proprietary testing data cannot be released directly to counsel, such data shall be made available to a qualified expert retained by Plaintiff.
6. The examination shall not exceed the duration reasonably necessary to complete the evaluation.

Based on the Opposition, it appears that item 3 should have read that the IME should be audio recorded. It appears that both parties are in agreement regarding no video. It also appears that the parties are in agreement as to item 4 and item 5. The time that Defendant asserts the exam will take is reasonable so item 6 is also not an issue.

The dispute appears to be mostly with items 1 and 2. Plaintiff seeks to prevent the examiner from eliciting information that was already provided in Plaintiff's previous depositions. In considering the facts presented in this case from those in *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal. App. 4th 739, the Court finds that the facts and circumstances are drastically different. This case involves an adult and what is alleged to be a continuing course of conduct, rather than a child being injured in an isolated incident as in *Golfland*. Dr. Bahar Safei-Far has provided evidence of why questioning about the underlying facts is necessary to the IME process. As worded, items 1 and 2 are proper limitations. However, this should not be construed to limit the examiner from asking about facts already covered to the extent the examiner deems necessary.

The motion is **GRANTED**. Defendant requested an IME within one week. However, this matter is not set for trial until October 20, 2026, giving the parties additional time to conduct the examination. The Court orders the IME to take place within fifteen days of today. All limitations are ordered as described above with the exception of item 3 as neither party wishes to have the IME video recorded. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (County of Sonoma): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff's peace officer personnel records from custodian of records for the County of Sonoma. Plaintiff has not filed an opposition to the Motion. The County of Sonoma has filed a Non-Opposition.

Merits of Motion. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff's Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Here, Defendant is seeking a narrowly tailored list of personnel documents from Sonoma County relevant to its defense. The City's request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City seeks: 1) All Personal History Statements ("PHS") submitted by Plaintiff September Wynhoff ("Plaintiff" or "Wynhoff") as part of the pre-employment background investigation process for the Sonoma County Sheriff's Office; and 2) Any documents relating to the pre-employment background investigation of Plaintiff, including employer questionnaires, interview notes, investigation reports and/or memoranda, correspondence, and any documentation regarding the decision not to hire Plaintiff. The Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence. The County of Sonoma does not object and seeks a standard protective order.

The Motion is **GRANTED**. A proposed order was lodged and will be executed, as modified. All released

documents will be designated Confidential pursuant to the Protective Order. The Court note that another *Pitchess* motion pertaining to the County of Siskiyou was recently continued to July 20, 2026. The County of Siskiyou likewise does not oppose the motion. In the interest of judicial economy, the Court intends to set the in-camera review for the same date and time. Therefore, this matter is continued to **Monday, July 20, 2026 at 8:30 a.m. in Department 63** to schedule the in-camera review. **No appearance is necessary on today's calendar for this motion.**

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (County of Shasta): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff's peace officer personnel records from the custodian of records for the County of Shasta. The motion is opposed by the County of Shasta. Plaintiff has not filed an opposition to the Motion.

Merits of Motion. A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

The County of Shasta opposes the motion on the merits and also because a portion of the motion was filed under seal. Because the County of Shasta was not provided with the entire motion, the County of Shasta argues that they are unable to articulate an opposition. The Court agrees. While the City of Redding argues that the unredacted portions are sufficient to warrant the motion being granted, the City of Redding included the redacted information in their motion.

The Court notes that the same information was sought from the County of Siskiyou on June 29, 2026. The County of Siskiyou motion was continued to July 20, 2026, due to a service issue. However, the County of Siskiyou appeared at the hearing and indicated that they do not oppose the motion. Also on calendar today is a motion seeking the same information from the County of Sonoma. The County of Sonoma filed a Non-Opposition noting that they do not oppose the motion, so long as the standard procedure for an in-camera review occurs and a protective order issue.

Based on the entirety of the motion, it appears that the City of Redding has met the threshold with respect to granting an in-camera review as to the County of Shasta. However, the Court is not inclined to grant a motion when one party is objecting on the basis that they were not able to review the entire motion. The Court notes three possible options:

1. The Protective Order in the previous County of Trinity *Pitchess* Motion can be expanded to allow limited review by the County of Shasta.
2. An Amended Motion can be filed that does not contain any redacted information.
3. The parties agree that the City of Redding has provided good cause for an in-camera review.

The parties are ordered to meet and confer regarding the options above and be prepared to address the Court. The other two *Pitchess* motions will be on calendar on July 20, 2026. Absent a reason to order otherwise, the Court intends to move this hearing to the same date. **An appearance is necessary on today's calendar.**

9:00 a.m. – Review Hearings

BARTON, ET AL. VS. NORTH REDDING HOSPITALITY LLC

CASE NUMBER: 25CV-0208230

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than January 12, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

FASSBINDER, ET AL. VS. PG&E CORPORATION, ET AL.

CASE NUMBER: CVCV21-0198186

This matter is on calendar for review regarding status of JCCP. Plaintiffs filed a status statement informing the Court that a request for dismissal with prejudice will be filed shortly in the JCCP and counsel's intent is to do the same in this court. The matter is continued to **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of JCCP and dismissal. If the matter has not been dismissed by October 5, 2026, the parties are ordered to file a status statement no less than five court days prior to hearing. **No appearance is necessary on today's calendar.**

GLANZER VS. OETZEL

CASE NUMBER: 25CV-0208503

This matter is on calendar for review regarding status of the case. The Court notes that there is no Proof of Service of Summons on file. Plaintiff did not file a status statement. The matter is continued to **Tuesday, September 14, 2026 at 9:00 a.m. in Department 63** for status of the case. Plaintiff is ordered to file a status statement no less than five court days prior to the next review hearing. **No appearance is necessary on today's calendar.**

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

This matter is on calendar for review regarding status of bankruptcies. No status statements were filed despite the parties being ordered to file a status statement at least five days prior to today's hearing. **An appearance by all parties is necessary on today's calendar.**